

supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of **Plaintiff William Desena's** Counsel to be relieved as counsel of record. This motion is **granted**.

The Court will execute and submit a Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053), listing the appropriate next dates scheduled in the case. The withdrawal is effective upon **Justin Vitug** filing proof of service of signed order on **Plaintiff William Desena** and all parties.

The next date in this case is September 28, 2026 at 8:30 a.m. in Dept. 32 for Case Management Conference. All parties are ordered to file an updated Case Management Conference Statement at least 10 days prior to the Case Management Conference.

13. 9:00 AM CASE NUMBER: C26-00876
CASE NAME: PNC BANK, NATIONAL ASSOCIATION, SUCCESSOR TO PNC EQUIPMENT FINANCE, LLC, VS. COSTAS LAGUSIS

APPLICATION FOR WRIT OF POSSESSION AND HEARING AFTER HEARING

FILED BY: PNC BANK, NATIONAL ASSOCIATION, SUCCESSOR TO PNC EQUIPMENT FINANCE, LLC,

TENTATIVE RULING:

The unopposed application for a writ of possession for a 2023 Bobcat E32 Excavator Mini-Compact, Serial #B57811722 is approved. The court will execute the Order for Writ of Possession lodged with the Court on April 7, 2026.

14. 9:00 AM CASE NUMBER: C26-01203

CASE NAME: DANA FINEGOLD VS. JAMES FINEGOLD

SHOW CAUSE WHY A PRELIMINARY INJUNCTION SHOULD NOT BE ISSUED - SET BY DEPT PER EX PARTE ORDER FILED 4/29/26

FILED BY:

TENTATIVE RULING:

Before the Court is an order to show cause why a preliminary injunction should not issue foreclosing Defendant from engaging in, or attempting to engage in, fraudulent, unlawful, harmful and/or injurious conduct to Plaintiff, with respect to the operation of Plaintiff's and Defendant's company, AAAA RV & Boat Storage, LLC ("AAAA RV & Boat Storage" or the "Company").

For the following reasons, the motion is **denied** and the TRO issued on April 29, 2026 is **vacated**.

Factual and Procedural Background

On April 4, 2026 Plaintiff Dana Finegold, as an individual and derivatively on behalf of AAAA RV & Boat Storage, LLC filed a complaint against Defendant James Finegold and Nominal Defendants AAAA RV & Boat Storage LLC and JDF Holdings. The complaint for damages alleges causes of action for (1) breach

of fiduciary duty; (2) breach of fiduciary duty (derivative); (3) fraud – false promise; (4) fraud – intentional misrepresentation; (5) accounting and access to books and records; (6) breach of contract; (7) breach of the implied covenant of good faith and fair dealing; (8) conversion; (9) concealment; (10) partition of property; and (11) civil aiding and abetting.

Plaintiff Dana Finegold and James Finegold were previously married. Through a stipulated judgment for marital dissolution, Plaintiff and Defendant are co-owners and co-managers of AAAA RV & Boat Storage, LLC (“AAAA RV & Boat Storage” or the “Company”), a California limited liability company and of JDF Holdings, LLC, (“JDF Holdings”) a California Limited Liability Company that owns the property on which AAAA RV & Boat Storage operates (collectively, AAAA RV & Boat Storage and JDF Holdings are referenced as the “Companies”). (Complaint at ¶ 3.) The Complaint further alleges that Defendant Finegold “has misused AAAA RV & Boat Storage’s corporate funds and property for his own personal purposes, including but not limited to using Company bank accounts, cash receipts, equipment, and other assets for non-Company, personal, and competing business uses without legal or proper authorization.” (*Id.* at 9.)

On April 14, 2026 Plaintiff moved *ex parte* for a temporary restraining order. The Court granted the *ex parte* application on April 29, 2026 as follows:

1. Prohibitory Restraints. Defendant James Finegold is hereby ordered to cease:

- (a) Diverting, transferring, withdrawing, concealing, encumbering, or otherwise dissipating any cash, rents, income, receivables, deposits, or other assets of AAAA RV and Boat Storage, LLC (“Company Assets”), except in the ordinary course of business;
- (b) Opening, maintaining, or utilizing any undisclosed or unauthorized bank, credit, merchant, or financial accounts for the deposit, holding, transfer, or expenditure of Company Assets;
- (c) Depositing Company revenues into any account other than duly disclosed Company accounts LLP identified to Plaintiff Dana Finegold and to which Plaintiff has been given ownership and access;
- (d) Interfering with, restricting, or denying Plaintiff’s complete access to Company books, records, accountings, bank accounts, financial systems, facilities, and management information;
- (e) Taking any action outside the ordinary course of the Company’s business without the written consent of Plaintiff Dana Finegold or further the Court.

2. Affirmative Directives. Within 15 court days of the Order, Defendant shall:

- (a) Provide Plaintiff and her counsel with a complete accounting of all Company receipts and disbursements from Feb 1, 2026 to the present;
- (b) Identify in writing all bank, credit, merchant, and financial accounts into which any Company Assets have been deposited or transferred since Jan 31, 2026;
- (c) On or before 5/8/2026 transfer or cause to be transferred to duly disclosed Company operating accounts all Company Assets currently held in any undisclosed or non-Company accounts including Acct # ending #7091 w/ US Bank;
- (d) Restore Plaintiff’s full access credentials to Company records, accounting systems, banking portals, and facilities; and
- (e) Pay to Plaintiff the amount of \$50,000 representing the two months of income March 2026

and April 2026 she would have received from AAAA RV & Boat Storage operations but for Defendant's conduct; Plaintiff may withdraw from AAAA RV account ending in #9176 immediately.

3. Preservation of Status Quo. All Company Assets shall be preserved and used solely for legitimate Company purposes in the ordinary course of business.

4. Bond. Bond is hereby waived.

The Court also set an order to show cause for August 21, 2026 at 9:00 a.m.

On July 20, 2026, Plaintiff filed supplemental briefing in support of the motion for preliminary injunction. Therein, Plaintiff contended that Defendant had refused to comply with the portion of the TRO requiring a complete accounting of all Company receipts and disbursements from February 1, 2026 to the present. Plaintiff also contended that Defendant "continues to use at least two accounts associated with his siphoning account that received or continue to receive AAAA receipts or deposits and to which Plaintiff has no access." (Supp. Memorandum at 3:3-5.) Plaintiff also requested (among other things) supplemental relief in the form of an order that Defendant produce a customer-by-customer accounting from February 1, 2026 to the present, stating for each payment the customer name, invoice or storage space identifier, amount, date received, and payment method, together with monthly bank and processor statements and backup reflecting all deposits, chargebacks, and transfers for all accounts receiving or transmitting Company funds, including the MerchPayout SV9T account ending "3694a storage," account ending 4599, account ending 8194, and any other associated accounts. In opposition, Defendant disputes non-compliance with the Court's TRO.

Legal Standard on Preliminary Injunction

Generally, the ruling on an application for preliminary injunction rests in the sound discretion of the trial court. (*Whyte v. Schlage Lock Co.* (2002) 101 Cal.App.4th 1443, 1450.) "An injunction properly issues only where the right to be protected is clear, injury is impending and so immediately likely as only to be avoided by issuance of the injunction. [Citation.]" (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.) The purpose of the preliminary injunction, theoretically, is to preserve the status quo and prevent irreparable harm pending trial on the merits. (*White v. Davis* (2003) 30 Cal.4th 528, 554.)

"Two interrelated factors are evaluated by the trial court in deciding whether to issue a preliminary injunction. The first is the 'reasonable probability that the Plaintiff will prevail on the merits at trial.'" (*Teachers Ins. & Annuity Assn.*, supra, 70 Cal.App.4th at p.1493). "The second is the interim harm that the Plaintiff is likely to sustain if the injunction were denied as compared to the harm that the Defendant is likely to suffer if the preliminary injunction were issued." (*Id.*).

While two factors are evaluated, "regardless of the balance of interim harm, the preliminary injunction cannot be allowed to stand unless there is 'some possibility' [Plaintiffs] will prevail on the merits of [their] action." (*Costa Mesa City Employees' Assn. v. City of Costa Mesa* (2012) 209 Cal.App.4th 298, 309.) Additionally, the burden is on the party seeking the injunction to show all elements necessary to support its issuance. (*O'Connel v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.)

The Court is not inclined to grant the requested injunction. In several respects, Plaintiff's requested orders would not "preserve" the status quo, but effectively grant judgment in her favor. This runs contrary to the underlying policy of preliminary injunctions, which preserve the status quo. The Court first notes the nature of the injunction requested. "[T]he general rule is that an injunction is

prohibitory if it requires a person to refrain from a particular act and mandatory if it compels performance of an affirmative act that changes the position of the parties.” (*Davenport v. Blue Cross of California* (1997) 52 Cal.App.4th 435, 446.) In her supplemental memorandum, Plaintiff requests supplemental relief which includes ordering Defendant to produce a customer-by-customer accounting from February 1, 2026 to the present as well as creates several new documentary obligations beyond those required by the stipulated judgment. These requests would “compel[] performance of an affirmative act that changes the position of the parties.” (*Id.*) As a consequence, this is a mandatory injunction, as opposed to prohibitory, and it is subject to stricter standards. (See *Teachers Ins. & Annuity Assn. v. Furlotti* (1999) 70 Cal.App.4th 1487, 1493 [such an injunction is subject to stricter review on appeal].) Moreover, courts are generally more “reluctant” to issue a mandatory injunction, even if they may be granted in proper cases. (*Allen v. Stowell* (1905) 145 Cal. 666, 669.)

Analysis

The underlying policy of preliminary injunctions is to preserve the status quo. In this case, the status quo is dictated by the stipulated judgment regarding the parties’ jointly owned business interests.

1. Likelihood of Prevailing on the Merits

In looking at the likelihood of prevailing on the merits, the moving party bears the burden of establishing a reasonable probability of success on the merits. (*Association for Los Angeles Dept Sheriffs v. County of Los Angeles* (2008) 166 Cal.App.4th 1625, 1634.) Injunction will not issue if it appears the plaintiff will not prevail. (*SB Liberty, LLC v. Isla Verde Ass’n, Inc.* (2013) 217 Cal.App.4th 272, 280.)

Plaintiff argues that she has a high likelihood of success on the merits of the pled claims arising out of Defendant’s alleged breach of the Stipulated Judgment and his duties as co-manager and co-owner. In support of her *ex parte* application, she testified that notwithstanding her 50% ownership in AAAA RV & Boat Storage, LLC she does not have visibility into customer payments, delinquencies, or collections. (Dana Finegold Decl. iso TRO at ¶ 14.) She further testified that she has been shut out of the Company’s management and operations as well as denied access to the Company’s books, records, and accounting information. (*Id.* at ¶ 19.)

Outside of this testimony, Plaintiff does not adduce any evidence in support of the causes of action in her complaint. In opposition, Defendant has rebutted all of the factual allegations of Plaintiff Dana Finegold’s declaration with his own declaration testimony. Defendant disputes that he owns or operates a business that competes with AAAA. (James Finegold Decl. at ¶ 4.) He also testifies that he has not diverted or otherwise dissipated any of the Company Assets except in the ordinary course of business (*id.* at ¶ 2) and that he provided Plaintiff and her counsel with a complete accounting as required by the TRO order. (*Id.* at ¶ 3.)

Plaintiff has not demonstrated a likelihood of prevailing on the merits.

1. Balancing of the Relative Harms

In deciding whether to issue the injunction, the Court must also evaluate “the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued.” (*Smith v. Adventist Health System/West* (2010) 182 Cal.App.4th 729, 749.) “The ultimate goal of any test to be used in deciding whether a preliminary injunction should issue is to minimize the harm which an erroneous interim decision may cause. [Citation.]” (*White v. Davis* (2003) 30 Cal.4th 528, 554.) Although the

court has broad discretion, it has “no discretion to act capriciously.” “It must exercise its discretion ‘in favor of the party most likely to be injured.’” (*Robbins v. Superior Court* (1985) 38 Cal.3d 199, 205.)

“To obtain a preliminary injunction, a plaintiff ordinarily is required to present evidence of the irreparable injury or interim harm that it will suffer if an injunction is not issued pending an adjudication of the merits.” (*White v. Davis* (2003) 30 Cal.4th 528, 554.) Irreparable harm is often related to the ‘inadequate legal remedy’ (*i.e.*, the damages remedy is inadequate because some immeasurable harm is threatened).

In this context, Plaintiff argues that the damages remedy is inadequate because of the threat of dissipation of assets, relying on *Wind v. Herbert* (1960) 186 Cal.App.2d 276.

In *Wind*, the Court of Appeal affirmed a trial court’s preliminary injunction in a partnership’s dissolution action which was designed to maintain the status quo pending adjudication on the merits. (*Wind, supra*, at pp. 279-283.) The injunction enjoined a partner in a card club from breaching a partnership agreement by depositing money from the club into a bank account that was not accessible to the other parties. (*Id.*) The injunction was within the court’s discretion because the partner would continue to dissipate the assets of the partnership. (See *id.* at p. 285.) The Court of Appeal noted that the trial court also could have found that the disbursements might be able to be adequately traced, and that an accounting that could eventually be ordered “might not fully disclose the damages suffered.” (*Id.*) “Further, use by defendants of partnership assets for their own gain and to the detriment of plaintiffs is a species of damage, ‘that ought not to be submitted to on the one hand or inflicted on the other.’ Such acts would constitute a flagrant breach of trust. Under the circumstances, the trial court properly issued a preliminary injunction to assure that the partnership assets will remain intact pending an accounting and a final hearing on the merits.” (*Id.* at pp. 285-286.)

Here, however, there is no evidence that Defendant is diverting liquid assets to a bank account that is not accessible by Plaintiff. As noted above, Defendant has rebutted all of the factual allegations of Plaintiff Dana Finegold’s declaration with his own declaration testimony. Plaintiff has not adduced evidence of “an actual or threatened injury to property or personal rights which cannot be compensated by an ordinary damage award.” (*Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410 (internal citation omitted).)

Finally, the Court notes that a preliminary mandatory injunction is rarely granted; it is permitted only in extreme cases where the right to such relief is clearly established. (*Shoemaker v. County of Los Angeles* (1995) 37 Cal.App.4th 618, 625.) Plaintiff has not met her burden to establish her right to relief. The Motion is **denied**.

Evidentiary Objections

Neither party made any evidentiary objections.

15. 9:00 AM CASE NUMBER: MSC21-00650
CASE NAME: MARIA SALVADOR VS. GULF HARBOUR INVESTMENTS CORPORATION
ATTORNEY'S FEES
FILED BY:
TENTATIVE RULING:

The matter is stayed pursuant to the notice of bankruptcy filed 3/18/25.